

- RAG Learning

1.4 The Judiciary

Politics — AQA (7152) — Paper 1 (Government and Politics of the UK)

The judiciary interprets and applies the law and reviews the lawfulness of government action. Its constitutional position is defined by a single fact: because Parliament is sovereign and the constitution unentrenched, **UK courts cannot strike down an Act of Parliament**. Their power runs against the *executive*, not the legislature — and that is a deliberate design, not an oversight.

1. The UK Supreme Court

- Created by the **Constitutional Reform Act 2005**; opened in 2009.
- **12 justices**, subject to a mandatory retirement age.
- The final court of appeal for civil cases across the UK and for criminal cases in England, Wales and Northern Ireland.
- Also resolves devolution disputes.

What the 2005 Act changed

Before	After
The Law Lords were the final court <i>and</i> sat and voted in the House of Lords	Justices removed from the legislature entirely
The Lord Chancellor was head of the judiciary, Speaker of the Lords <i>and</i> a cabinet minister — a role spanning all three branches	Headship of the judiciary transferred to the Lord Chief Justice

Judges appointed on the Lord Chancellor's recommendation

Selection by the independent **Judicial Appointments Commission** (Supreme Court justices by an ad hoc selection commission)

The Act therefore sharpened the **separation of powers**, which the UK's fused system otherwise lacks.

2. Judicial independence

Judicial independence — judges are free from political interference or pressure when reaching decisions, so cases are decided on the law alone.

Protection	How it works
Security of tenure	Senior judges hold office during good behaviour and can be removed only by the monarch following an address from both Houses — a procedure used only once, in 1830, against the Irish judge Sir Jonah Barrington, and never against an English judge
Guaranteed salaries	Charged on the Consolidated Fund, so not subject to annual parliamentary approval or ministerial manipulation
Independent appointment	The Judicial Appointments Commission selects on merit for the courts of England and Wales, removing patronage appointment by a serving politician
Supreme Court appointments	An ad hoc selection commission (the President of the Court, a senior judge, and members of the JAC and the Scottish and Northern Ireland appointment bodies) recommends a candidate; the Lord Chancellor may accept, reject or ask for reconsideration once; formal appointment is by the monarch on the PM's advice
Sub judice rule	Parliament refrains from discussing cases actively before the courts
Contempt of court	Restricts media pressure on proceedings

Separation from the legislature

Since 2005, justices no longer sit in Parliament

Exam Tip: The formal protections remain robust — but the **informal** position is weaker. Ministerial and press attacks on judges after Miller I and Miller II, and government reluctance to defend them promptly, suggest the conventions of restraint are eroding even as the legal guarantees hold. That distinction between formal and informal independence is what separates a strong answer from a list.

3. Judicial neutrality

Judges should set aside personal political views and apply the law impartially. They are barred from political activity and expected to recuse themselves where they have an interest.

The challenge to neutrality

- **Unrepresentative composition** — the senior judiciary remains disproportionately male, white, privately educated and Oxbridge-educated, reflecting the narrow recruitment base of the senior bar.
- **J.A.G. Griffith's critique** — argued that judges share an establishment outlook, producing a consistent tilt on questions of public order, property and state power, whatever their conscious intentions.
- **Interpretation involves discretion** — where statutes are ambiguous, judges must choose; a homogeneous bench may share unexamined assumptions.

Counter-arguments: appointment on merit through the JAC is itself a protection; diversity has improved markedly at lower levels and will feed upwards; and the courts rule against government frequently, which is hard to square with a claim of systematic establishment bias.

4. Judicial review

Judicial review — the process by which courts examine whether a public body has acted lawfully and within its powers. It reviews the *legality of the process*, not the merits of the policy.

Grounds

- **Illegality** — acting beyond the powers granted by law (*ultra vires*).
- **Irrationality** — a decision so unreasonable that no reasonable body could have reached it (Wednesbury unreasonableness).
- **Procedural impropriety** — failure to follow required procedure or the rules of natural justice.
- **Incompatibility with Convention rights** under the Human Rights Act 1998.

Why it has expanded since 1997

1. The **Human Rights Act 1998** created an entirely new set of grounds and allowed claims domestically rather than in Strasbourg.
2. **Devolution** created questions about the limits of devolved competence that only courts could resolve.
3. **Growth of executive and agency decision-making** under broad delegated powers simply created more decisions capable of challenge.
4. A **more rights-conscious legal culture**, with campaigning groups and firms willing to bring test cases.

The government response: restrictions on legal aid, tighter rules on standing and time limits, and the **Judicial Review and Courts Act 2022**, which narrowed the remedies available. The existence of that Act is itself evidence that judicial review had become a genuine constraint — and evidence that Parliament retains the final word.

5. The Human Rights Act and the limits of judicial power

Mechanism	Effect
Section 3	Courts must read legislation compatibly with Convention rights "so far as it is possible to do so" — a strong interpretive duty that has substantially shaped statutory

	meaning
Section 4	Where compatible reading is impossible, a senior court may issue a declaration of incompatibility . The statute <i>remains valid law</i> and must still be applied; only Parliament can amend it
Section 6	It is unlawful for a public authority to act incompatibly with Convention rights — this is where the courts' power actually bites

Exam Tip: The declaration of incompatibility is a **deliberate constitutional compromise**, not a weakness. Courts can publicly identify a rights violation and generate political pressure, while Parliament formally retains the last word. Governments have in practice almost always amended the law in response — so the mechanism's political force exceeds its legal force.

6. The landmark cases

Miller I (2017)

Held that ministers could not use the royal prerogative to trigger Article 50, because doing so would remove rights conferred by statute. Only Parliament could authorise it. It also held that the **Sewel Convention remained judicially unenforceable** despite being recognised in statute.

Frequently misread. This was not a defeat for parliamentary sovereignty — it protected Parliament against the executive.

Miller II (2019)

Held the five-week prorogation unlawful and void, because it frustrated Parliament's constitutional functions without reasonable justification. The critical move was holding the question **justiciable**: the government had argued prorogation was inherently political and beyond judicial reach.

Factortame (1991)

UK courts disapplied part of an Act of Parliament conflicting with EU law — the first time a UK court had set aside primary legislation. Its basis disappeared with the repeal of the European Communities

Act 1972 in 2020.

7. Is the Supreme Court too powerful?

Yes	No
Miller I and II placed the Court at the centre of the most contested political question of a generation	The Court did not choose these cases; they were brought to it
Miller II applied a novel standard with limited precedent	In each case it ruled on the limits of <i>executive</i> power under existing principle, not on the merits of Brexit
The HRA s.3 duty has produced readings that strain what Parliament enacted	Where compatible reading is impossible the Court can only declare incompatibility — Parliament decides
Judicial review has expanded substantially, imposing caution on administration	It polices legality, not merit; and Parliament can reverse any ruling by statute, as it did in 2022 (reversing <i>Cart</i>)

Exam Tip: The decisive structural point for a conclusion: **the UK Supreme Court cannot strike down legislation and every ruling it makes can be reversed by an ordinary Act of Parliament.** Compare the US Supreme Court, whose constitutional rulings can realistically only be reversed by the Court itself. On that measure the "too powerful" charge is far harder to sustain in the UK than in the USA.

Key terms

Term	Definition
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Judicial independence	Freedom from political interference in judicial decision-making
Judicial neutrality	Setting aside personal views and applying the law impartially
Judicial review	Court examination of whether a public body acted lawfully and within its powers
<i>Ultra vires</i>	Acting beyond the powers granted by law
Wednesbury unreasonableness	A decision so unreasonable no reasonable body could have reached it
Declaration of incompatibility	HRA s.4 finding that a statute conflicts with Convention rights; the statute remains valid
Justiciable	Capable of being decided by a court, rather than purely political
Security of tenure	Protection from removal except by address from both Houses
Sub judice	Rule restraining parliamentary discussion of active cases

Essential examples

- **Constitutional Reform Act 2005** — Supreme Court, JAC, reformed Lord Chancellor.
- **Miller I (2017)** — prerogative cannot remove statutory rights; Sewel unenforceable.
- **Miller II (2019)** — prorogation justiciable and unlawful.
- **Factortame (1991)** — disapplication of statute under EU law.
- **Judicial Review and Courts Act 2022** — Parliament narrowing judicial review remedies; sovereignty reasserted.
- **Belmarsh case (2004)** — declaration of incompatibility over indefinite detention of foreign terror suspects; government amended the law in response.